

OFFICE OF THE SECRETARY

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Sacramento, CA 94283-0001



November 22, 2019

The Honorable Colleen Nichols
Judge of the Superior Court
County of Placer
10820 Justice Center Drive
Roseville, CA 95678

Re: Rudy Eugene Hinojosa
CDCR No: V42659
Case No: 62-118259
Date of Sentence: March 25, 2013

Dear Honorable Colleen Nichols:

The purpose of this letter is to provide the court with the authority to resentence inmate Rudy Hinojosa, V42659, pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1). PC Section 1170, subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

Inmate Hinojosa is commended for remaining disciplinary free since being received to CDCR on April 2, 2013. Inmate Hinojosa is currently assigned as a Vocational Electrical Works Student. Hinojosa has previously participated in Prison of Peace, New Professionals, Truth Project, Victim's Impact/Awareness, Twelve Tribes, Alcoholics Anonymous, and Narcotics Anonymous self-help groups.

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Having reviewed the enclosed documentation it appears that inmate Hinojosa's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,


RALPH M. DIAZ
Secretary

Enclosures:

Abstract of Judgment

Minute Order

Court Information-Charging Documents

Cumulative Case Summary

cc: Honorable Alan V. Pineschi, Presiding Judge
Placer County District Attorney's Office
Placer County Public Defender's Office